

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #7	CCRB Case #: 201909573	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/01/2019 10:19 AM, Friday, 11/01/2019 1:53 PM	Location of Incident: 68th Precinct stationhouse, Brooklyn (Kings) Central Booking	Precinct: 68	18 Mo. SOL 5/1/2021	EO SOL 12/16/2021	
Date/Time CV Reported Mon, 11/04/2019 2:13 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/04/2019 2:13 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Singh	21205	959246	068 PCT
2. POM Hanzala Munir	25723	964181	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mateo Arboledapalacio	07444	965652	068 PCT
2. POM John Cassidy	09495	963437	068 PCT
3. POM Dominick Gatto	27905	950482	HWY 02
4. POF Brenda Maldonado	21851	928683	078 PCT
5. SGT John Freisen	03474	950444	068 PCT
6. POM Francis Ingebrethsen	23037	950617	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Hanzala Munir	Discourtesy: At the 68th Precinct stationhouse in Brooklyn, Police Officer Hanzala Munir spoke discourteously to § 87(2)(b)	
B.POM Joseph Singh	Abuse: At the Brooklyn Central Booking jail, Police Officer Joseph Singh threatened § 87(2)(b) with the use of force.	
C.POM Joseph Singh	Discourtesy: At the Brooklyn Central Booking jail, Police Officer Joseph Singh spoke discourteously to § 87(2)(b)	

Case Summary

On November 4, 2019, § 87(2)(b) filed the following complaint with the CCRB over the phone.

At approximately 4:45 a.m. on November 1, 2019, § 87(2)(b) was involved in a motor vehicle accident within the confines of the 68th Precinct in Brooklyn. Officers arrested her for § 87(2)(b). Officers then transported § 87(2)(b) to the 68th Precinct stationhouse, where they had her sit in a chair near holding cells with one wrist handcuffed to a metal bar. While waiting for her arrest processing to proceed, § 87(2)(b) removed her wrist from the loosely fastened handcuff and went to sleep in the chair. At approximately 10:19 a.m., PO Hanzala Munir of the 68th Precinct noticed § 87(2)(b) and allegedly said, Why the fuck did you do that? Who the fuck do you think you are?" (**Allegation A: Discourtesy: Word:**

§ 87(2)(g)

PO Joseph Singh and PO John Cassidy of the 68th Precinct transported § 87(2)(b) to the Brooklyn Central Booking (BCB) jail and escorted her through parts of the jail's intake procedure. § 87(2)(b) was dressed in a Halloween costume that exposed most of her lower body, and male prisoners reportedly made crude remarks to her as she walked past their cells. Shortly thereafter, at approximately 1:53 p.m., § 87(2)(b) vomited into a trashcan. PO Singh then told § 87(2)(b) "All the men in those holding cells over there want me to bring you over there, but I told them I have first dibs." (**Allegation B: Abuse of Authority: Threat of force (verbal or physical):**

§ 87(2)(g) **Allegation C: Discourtesy: Word:** § 87(2)(g))

§ 87(2)(g)

The investigation obtained multiple NYPD surveillance videos that show the portions of the incident containing FADO allegations. The original videos are each several hours long, and the investigation used Input Ace to create sub-clips showing § 87(2)(b) speaking to PO Munir (**Board Review 01**) and to PO Singh (**Board Review 02**).

Findings and Recommendations

Allegation A – Discourtesy: Word: At the 68th Precinct stationhouse in Brooklyn, Police Officer Hanzala Munir spoke discourteously to § 87(2)(b)

§ 87(2)(b) provided a sworn statement at the CCRB on November 16, 2019 (**Board Review 03**). PO Munir was interviewed on December 7, 2020 (**Board Review 04**).

In her sworn statement, § 87(2)(b) described being brought into the holding cell area and cuffed to a metal rail. § 87(2)(b) fell asleep for an unknown period, woke up, and realized that the handcuff was loose enough for her to pull her wrist and hand

out. She removed her wrist and hand and fell back asleep. NYPD stationhouse surveillance video fully corroborates § 87(2)(b)'s account of how this incident began.

In her sworn statement, § 87(2)(b) said that PO Munir noticed that she was not handcuffed and asked "Why the fuck did you do that? Who the fuck do you think you are?" PO Munir then re-handcuffed § 87(2)(b) to the nearby rail. The stationhouse video (**Board Review 01**) corroborates that PO Munir entered the holding cell area and spoke to § 87(2)(b) for approximately 30 seconds before re-handcuffing her. The video contains no audio, however.

In his interview, PO Munir acknowledged his presence in the video and that the video appeared to show him speaking to § 87(2)(b). He did not recall § 87(2)(b)'s demeanor or what, if anything, they said to one another. PO Munir denied cursing at § 87(2)(b) including saying, "Why the fuck did you do that? Who the fuck do you think you are?" He did not hear anyone else curse at § 87(2)(b) during this portion of the incident.

§ 87(2)(g)

Allegation B – Abuse of Authority: Threat of force: At the Brooklyn Central Booking jail, Police Officer Joseph Singh threatened § 87(2)(b) with the use of force.
Allegation C – Discourtesy: At the Brooklyn Central Booking jail, Police Officer Joseph Singh spoke discourteously to § 87(2)(b).

PO Singh was interviewed on February 24, 2020 (**Board Review 05**).

In her sworn statement, § 87(2)(b) stated that when officers first arrested her, she was wearing a Halloween costume that included a hospital gown and facial makeup simulating a large black eye bruise. Officers confiscated the hospital gown early in her arrest processing for safety reasons, and § 87(2)(b) spent the rest of the incident wearing a hooded sweatshirt and short, tight-fitting spandex shorts. Her "black eye" makeup remained unchanged throughout the incident.

§ 87(2)(b) described PO Singh as an approximately 6'0" tall half Black, half Indian male in his 30s with a stocky build and black hair that was cut short on the sides and longer on top. She learned PO Singh's name and ethnic background from his own statements to her and read his name on his uniform nametag. According to PO Singh's interview pedigree sheet (**Board Review 06**), PO Singh is a 6'1" tall Black and Asian male, aged 31 as of this incident, weighing 207 lbs., with black hair.

At the BCB jail, PO Singh escorted § 87(2)(b) past holding cells housing male prisoners. The prisoners made rude comments and romantic propositions to her referencing her apparent injury. At approximately this time, § 87(2)(b) saw PO Singh talking and laughing with the prisoners. § 87(2)(b) did not overhear what PO Singh and the prisoners were talking about. PO Singh then took § 87(2)(b) upstairs where a female officer searched her and commented on her revealing clothing. PO Singh then took § 87(2)(b) back downstairs where § 87(2)(b) had her mugshot taken.

§ 87(2)(b) and PO Singh walked around a corner to the medic station, where there was a line of approximately ten prisoners waiting to be seen. As § 87(2)(b)

waited for the medic, she felt like she needed to vomit. She told PO Singh that she needed to vomit, and PO Singh said that she should not throw up in front of the medic as the medic would then require her to be hospitalized. § 87(2)(b) wanted to move through her detainment as quickly as possible and did not want to go to a hospital, so she walked with PO Singh back past the line of prisoners and around the corner. Immediately around the corner was a large, industrial trash can. § 87(2)(b) vomited into the trash can while PO Singh waited nearby.

Either as § 87(2)(b) was vomiting or immediately after she finished vomiting, PO Singh said, “All the men in those holding cells over there want me to bring you over there, but I told them I have first dibs.” PO Singh then laughed and asked § 87(2)(b) about her ethnic background. § 87(2)(b) mentioned that PO Singh’s last name was “Singh.” PO Singh acknowledged this, said he was half black and half Indian, and asked if § 87(2)(b) was of Indian descent as well as she appeared Indian, and her last name was § 87(2)(b). In her sworn statement, § 87(2)(b) explained that her parents, grandparents, and great-grandparents are from Trinidad and her ancestors were from India. After this conversation, PO Singh brought § 87(2)(b) back to the medic, who examined her.

In his interview, when asked to provide a narrative of this incident in his own words, PO Singh read directly from his memo book entries (**Board Review 07**). His entries stated that on the incident date, PO Singh transported 1 female and 2 males to the BCB jail. PO Singh did not initially recall § 87(2)(b)’s name and said that he had no knowledge of why he was being interviewed or where the allegations against him had come from.

PO Singh explained the BCB jail procedure for processing male and female prisoners in detail. He confirmed that police officers escort female prisoners past the male holding cells multiple times during a normal arrest processing. This happens because the layout of the jail requires female prisoners to walk between various separate rooms (female search area, photograph and fingerprint room, etc.) for processing. Furthermore, NYC Health and Hospitals staff interview each prisoner about their medical condition.

When first asked about the next steps in this specific incident, PO Singh said that either he or his partner, PO Cassidy, took § 87(2)(b) to the female search area while the other officer stayed downstairs with the male prisoners. PO Singh initially said that he did not recall which officer went with § 87(2)(b) or any subsequent details of § 87(2)(b)’s time in BCB.

The investigation informed PO Singh that November 1 was the day after Halloween and asked if any of PO Singh and PO Cassidy’s prisoners were wearing costumes. PO Singh said that § 87(2)(b) had a large, fake scar on her face which was realistic enough to be mistaken for a real injury. PO Singh then said he was “probably” the officer who escorted § 87(2)(b) to the upstairs, female-only area to be searched and that they were asked about the fake injury by a female BCB employee in the upstairs cells. § 87(2)(b) explained to the female BCB employee and PO Singh that the fake injury was part of her costume and did not require medical attention.

PO Singh did not recall whether he escorted § 87(2)(b) past male cells at any point. He did not recall whether any male prisoners ever commented on § 87(2)(b)’s apparent injury or romantically propositioned her. PO Singh denied ever discussing § 87(2)(b) with male prisoners.

PO Singh described § 87(2)(b)’s lodging process as proceeding normally and

without incident. PO Singh spoke to § 87(2)(b) and the two male prisoners about each step of the jailing process, but no other topics. PO Singh and PO Cassidy both escorted all three prisoners to the medical interview line. PO Singh did not see any of the prisoners become ill while waiting for their medical interviews. PO Singh did not recall if § 87(2)(b) told him that she felt that she was about to throw up and did not recall monitoring § 87(2)(b) as she threw up into a trashcan.

PO Singh denied saying, “All the men in those holding cells over there want me to bring you over there, but I told them I have first dibs.” He denied making any similar statement or any type of romantic or sexual proposal to § 87(2)(b). PO Singh denied discussing § 87(2)(b)'s racial or ethnic background, including the fact that they shared Indian heritage. PO Singh confirmed, however, that he has Indian heritage and that people often ask him about his last name because they associate it with Indian families.

Surveillance video from the BCB jail § 87(2)(g) videos show PO Singh escorting § 87(2)(b) to various rooms within the jail over the course of multiple hours. Two videos also corroborate, in detail, § 87(2)(b)'s account of approaching the medical interview room, briefly waiting behind multiple other civilians, and then becoming ill (see 1:48:50 to 1:55:00 of IA #110 and 1:52:55 to 1:54:45 of IA #111). The investigation used Input Ace to combine video clips from these two different surveillance cameras to most clearly show § 87(2)(b) becoming ill, walking around a corner, vomiting into a large trash can, and then returning to the medic's area (**Board Review 02**). Throughout this process, PO Singh can be seen standing close to and speaking with § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Under NYPD Patrol Guide Procedure 221-01, any use of force must be reasonable under the circumstances (**Board Review 08**). NYPD Patrol Guide Procedure 200-02, instructs officers to value human life, respect the dignity of each individual and render

services with courtesy and civility. (**Board Review 09**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 10**).
- Police Officer Munir has been a member of service for four years and has been a subject in two other CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Singh has been a member of service for six years and has been a subject in two other CCRB complaints and two allegations, neither of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- As of July 13, 2021, the New York City Comptroller's Office confirmed that no Notice of Claim has been filed regarding this complaint (**Board Review 11**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	<u>Matt Chaves</u>	<u>SI Matt Chaves</u>	<u>10/25/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Manager Vanessa Rosen</u>	<u>October 25, 2021</u>
	Signature	Print Title & Name
		Date

Reviewer:	<u></u>	<u></u>	<u></u>
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